

1. Line 1319 through 1326:

1319 **CHAPTER 31. Specialized Product Licensing and Tax Act**
 1320 **59-31-101 (Effective 01/01/27)**Definitions.
 1321 As used in this chapter:
 1322 (1) ~~Ĥ→ (a) ←Ĥ~~ "Cannabinoid product" means ~~Ĥ→~~ **the same as that term is defined**
 1322a **in Section 4-41-102****a product that contains or is represented to contain one or**
 1322b **more naturally occurring cannabinoids** ~~←Ĥ~~ .
 1322c ~~Ĥ→~~ **(b) "Cannabinoid product" does not include:**
 1322d **(i) medical cannabis as that term is defined in Section 26B-4-201; or**
 1322e **(ii) a medical cannabis product as that term is defined in Section 26B-4-201.** ~~←Ĥ~~
 1323 (2) "Kratom product" ~~Ĥ→~~ [{**means the same as that term is defined in Section 4-45-102**}]
 1323a **means a product containing any part of a leaf of the plant *Mitragyna speciosa*** ~~←Ĥ~~ .
 1324 ~~[(2)](3)~~ "Licensee" means a retailer that holds a valid license under Part 2, Licensing, to sell
 1325 a ~~[cannabinoid]~~specialized product.
 1326 ~~[(3)](4)~~ "Retail price" means the amount charged by a retailer for a ~~[cannabinoid]~~specialized

2. Line 1362 through 1368:

1362 ~~may make rules to establish the additional information described in Subsection (1)(c)~~
 1363 ~~that a retailer shall provide in the application described in Subsection (1).]~~
 1364 ~~[(5)](3)~~ The commission may ~~[not]~~ charge a \$50 fee for issuing or renewing a license under
 1365 this section ~~Ŝ→~~ **to offset the costs of administration** ~~←Ŝ~~ .
 1366 ~~[(6)](4)~~ The license under this section is in addition to a ~~[license]~~permit required under
 1367 Section 4-41-103.3.
 1368 ~~[(7)](5)~~ (a) The commission shall maintain a public list that includes the identity of each [

3. Line 1379 through 1383:

1379 **59-31-301 (Effective 01/01/27)**Taxation of specialized product.
 1380 (1) A tax is imposed on a ~~[cannabinoid]~~specialized product at a rate of ~~[:10]~~5.3%
 1381 multiplied by the retail price.
 1382 (2) (a) ~~Ĥ→ A ←Ĥ~~ licensee] ~~Ĥ→~~ **Except as provided in Subsection (2)(c), a** ~~←Ĥ~~
 1382a retailer shall collect the tax imposed under Subsection (1) from a [
 1383 purchaser]consumer at the time the ~~[cannabinoid]~~specialized product is sold.

4. Line 1384 through 1386d:

1384 (b) A consumer that purchases or receives an untaxed [cannabinoid]specialized product
1385 shall pay the tax at the time the [cannabinoid]specialized product is first received in
1386 this state.

1386a → (c) A retailer may elect not to collect the tax described in Subsection (2)(a)
1386b only if the retailer:

1386c (i) is located outside of the state; and

1386d (ii) does not meet the requirements of Subsection 59-12-107(2)(c). ←